

The Cattle-Trespass and Bombay District Felice (Amendment) Act, 1950

Source: <https://indiankanoon.org/doc/160941979/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Maharashtra - Act

The Cattle-Trespass and Bombay District Felice (Amendment) Act, 1950

MAHARASHTRA

India

The Cattle-Trespass and Bombay District Felice (Amendment) Act, 1950

Act 34 of 1950

Published on 6 November 1950

Commenced on 6 November 1950

[This is the version of this document from 6 November 1950.]

[Note: The original publication document is not available and this content could not be verified.]

The Cattle-Trespass and Bombay District Felice (Amendment) Act, 1950

Bombay Act

No. 34 of 1950

[Dated 6th November, 1950]

For Statement of Objects and Reasons, see Bombay Government Gazette, 1950, Part 5, page 239.

An Act to amend the Cattle-trespass Act, 1871, in its application to the State of Bombay and the Bombay District Police Act, 1890.

Whereas it is expedient to amend the Cattle-trespass Act, 1871, in its application to the State of Bombay and the Bombay District Police Act, 1890, for the purposes hereinafter appearing; It is hereby enacted as follows :-

1.

Short title.

- This Act may be called the Cattle-trespass and Bombay District Police (Amendment) Act, 1950.

2.

Amendment of sections 10, 12 and 26 of, and insertion of new section 28A in Act I of 1871.

- In the Cattle-trespass Act, 1871 -

(1)

in section 10, after the words "or any part thereof" the following shall be inserted, namely

"or a watch and ward appointed by a panchayat established under the Bombay Village Panchayats Act, 1933, or any person authorised by the State Government in this behalf, either by name or by virtue of office."

(2)

in section 12,-

(a)

the words "head of" shall be deleted;

(b)

for the words "Different scales may be prescribed for different local areas" the following shall be substituted, namely :-

"Progressively increasing scales may be prescribed in respect of cattle belonging to or kept by the same person according to the number of cattle impounded at a time and the number of times such cattle are impounded and different scales may be prescribed for different local areas".

(3)

in section 26,-

(a)

the first paragraph shall be numbered as sub-section (1) of that section;

(b)

after sub-section (1) so numbered, the following subsections shall be inserted, namely :-

"(2) The Magistrate trying the offence under sub-section (1) may order,-

(a)

that the accused shall pay such compensation, not exceeding two hundred and fifty rupees, as the Magistrate considers reasonable, to any person for any damage proved to have been caused to his crop or other produce of land by the accused committing the offence;

(b)

that the pigs in respect of which the offence has been committed shall be forfeited to the State Government.

(3)

Any compensation awarded under sub-section (2) may be recovered as if it was a fine imposed under this section."

(c)

the second paragraph shall be numbered as sub-section (4) of that section and in sub-section (4) so numbered the words "the foregoing portion of" shall be deleted;

(4)

after section 28, the following section shall be inserted, namely :-

"28A. Offence under section 26 to be cognizable. - The offence under section 26 shall be cognizable."

3.

[The amendments made by section 3 have been incorporated in the Bombay District Police Act, 1890 (Bombay 4 of 1890)].

Related AI tags, queries and research notes

Translation